

24STCV18142 24STCV18142

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Case Number: 24STCV18142 Hearing Date: August 14, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August 14, 2026 TRIAL DATE: September
21, 2026

CASE: Jamel Seward v. County of Los Angeles, et al.

CASE NO.: 24STCV18142

DEFENDANT

COUNTY OF LOS ANGELES' MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE,
SUMMARY ADJUDICATION OF ISSUES

MOVING PARTY: Defendant

County of Los Angeles

RESPONDING PARTY: Plaintiff Jamel

Seward

On May 7, 2023, Los Angeles County Sheriff's Department

Deputies Danny Lopez and Fabio Escobar (the "Deputies") separately received and

responded to a dispatch call stating that a black male wearing a black shirt

and black pants stole a cellphone and was last seen near the corner of Azusa

Avenue and Colima Road, heading towards Burlington Coat Factory of the Puente

Hills Mall located at 1600 South Azusa Avenue, City of Industry, CA 91748 (the "Location"). When Deputy Lopez arrived at the Location, Deputy

Lopez saw an individual matching the suspect's description, running in the parking lot between Burlington Coat Factory and 24 Hour Fitness toward a white SUV with a cellphone in his hand. When

Deputy Escobar arrived at the Location, he spotted an individual matching the suspect's description sitting in a white SUV.

The individual, later identified as plaintiff Jamel Seward ("Plaintiff" or "Seward"), was parked in the lot and sitting in his car before intending to exercise at a 24 Hour Fitness gym next to Burlington Coat Factory. The Deputies detained Seward then released him after verifying Seward's identify and confirming he was not the suspect. Seward was compliant throughout the encounter. The detention lasted around six minutes. Seward now alleges several civil rights violations against defendant County of Los Angeles ("Defendant" or "County").

I. BACKGROUND

On July 23, 2024, Plaintiff filed a Complaint against Defendant for (1) unreasonable detention and arrest, (2) unreasonable search and seizure, (3) excessive force, (4) municipal liability, (5) violation of Civil Code section 52.1, (6) negligence, (7) false imprisonment, and (8) intentional infliction of emotional distress.

On April 30, 2026, Defendant filed this motion for summary judgment, or, in the alternative summary adjudication.

On July 27, 2026, Plaintiff filed an opposition.[1]

On August 3, 2026, Defendant filed a reply.

II. EVIDENTIARY OBJECTIONS

Plaintiff submits six objections to portions of the declarations of Deputy Danny Lopez and Deputy Fabio Escobar and exhibits attached thereto, as well as Defendant's Separate Statement of Undisputed Material Facts No. 16. The objections are OVERRULED.

III. LEGAL STANDARD

The function of a motion for summary judgment or summary adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or

claim and to enable an order of summary dismissal without the need for trial.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Id.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, supra, 159 Cal.App.4th at p. 467; Code Civ. Proc., § 437c, subd. (c).)

IV. DISCUSSION

County moves

for summary judgment or summary adjudication of Seward’s claims based on the following grounds: (1) the Deputies had reasonable suspicion to detain Seward, (2)

the Deputies had reasonable suspicion to conduct a pat-down of Seward; (2) the Deputies did not use excessive force when detaining Seward; (3) Seward does not identify any policy, custom, or practice sufficient to impose municipal liability; (4) there is no evidence of threats, intimidation, or coercion; and (5) the Deputies conduct did not rise to the level of extreme or outrageous conduct. The court addresses these issues in turn.

A. Unlawful Detention

County argues

the first cause of action for unlawful detention and seventh cause of action for false imprisonment fail because the totality of circumstances establish that the Deputies had reasonable suspicion to detain Seward.[2]

To justify an investigative detention, the circumstances known or apparent to the officer must include specific and articulable facts causing him to suspect that activity relating to crime has taken place or is occurring or about to occur, and the person he intends to detain is involved in that activity. (People v. Leath (2013) 217 Cal.App.4th 344, 354.) “Not only must he subjectively entertain such a suspicion, but it must be objectively reasonable for him to do so: the facts must be such as would cause any reasonable police officer in a like position, drawing when appropriate on his training and experience [citation], to suspect the same criminal activity and the same involvement by the person in question. The corollary to this rule, of course, is that an investigative stop or detention predicated on mere curiosity, rumor, or hunch is unlawful, even though the officer may be acting in complete good faith.” (In re Tony C. (1978) 21 Cal.3d 888, 893.)

To determine whether a detention was supported by reasonable suspicion, a court “must look at the totality of circumstances in each case to see whether the detaining officer has a particularized and objective basis for suspecting legal wrongdoing.” (United States v. Arvizu (2002) 534 U.S. 226, 274.) “A vague description does not, standing alone, provide reasonable grounds to detain all persons falling within that description.” (In re Carlos M. (1990) 220 Cal.App.3d 372, 381–382.) However, “[a] general description combined with a close temporal and geographical connection between the crime and the suspects, may justify a detention.” (People v. Thomas (2018) 29

Cal.App.5th 1107, 1116.)

Here, like

the suspect, Seward was a black male wearing a dark shirt and dark pants. Seward had a cellphone. Further, it is undisputed that the Deputies responded

to a cellphone snatching at the Location and encountered Seward in the parking

lot of the mall where the suspect was last seen heading, and roughly

twenty-minutes after the robbery occurred. In short, the totality of the circumstances—Seward's

description matching the dispatch's broad description of the suspect combined

with Seward's close temporal and geographical connection with the crime—support

the existence of reasonable suspicion.

County meets its initial burden.

The burden

shifts. Seward concedes many of the

foregoing points. Nevertheless, Seward

argues the motion should be denied for three principal reasons: (1) the initial

description of the suspect lacked sufficient particularity to give rise to reasonable

suspicion; (2) contrary to Deputy Lopez's assertion, Seward was seated in his

car and did not run between Burlington Coat Factory and the gym at any point;

(3) there is a triable issue on whether the length of the detention was

reasonable. The arguments do not show

the existence of a triable issue.

First, as

discussed above, it is the matching description to the initial dispatch and the

temporal and geographical proximity which support a particularized suspicion. Seward attempts to manufacture a triable

issue by conjecturing that "a factfinder could also consider that he was in his

forties rather than approximately thirty, wore navy-blue sweatpants and

flip-flops rather than black pants, and ... was sitting in a parked vehicle

rather than running from the reported direction." (Opp., p. 9.)

However, the original dispatch did not indicate the suspect's age. Consideration of that descriptor is therefore

irrelevant to Plaintiff's initial detention.

Further, navy-blue pants may be dark. Seward conceded that point. The totality of the circumstances does not

support Seward's position.

Second, whether

Seward was seated in his vehicle or running towards his vehicle as Deputy Lopez

contends does not change the outcome of the analysis. Without consideration of Deputy Lopez's

running observation, the court concludes the totality of the circumstances support

the existence of particularized suspicion as to Seward.

Third, Seward

argues the length of his detention (six minutes) was not reasonable because the County did not carry its burden in showing the Deputies used reasonably diligent means to determine whether Plaintiff was the suspect. There is no dispute that the Deputies ultimately concluded that Seward was not the suspect because, as the Deputies learned during Seward's detention, the cellphone in Seward's possession did not match the victim's cellphone, the suspect entered into a white Tahoe whereas Seward's vehicle was a white Equinox, and the suspect was approximately thirty years old whereas Seward was in his forties. Yet, the County's evidence reveals Seward was detained for no longer than was reasonably necessary to confirm or dispel suspicion based on the foregoing facts, to wit, six minutes. Seward offers mere conjecture, not evidence, to suggest the length of the detention was unreasonable. The record does not support an unreasonable detention. Summary adjudication of the first and seventh causes of action are warranted.

B. Unlawful Search

County

argues the second cause of action for unlawful search fails because the Deputies had reasonable suspicion that Seward was armed.

To justify a search of a suspect, the officer must reasonably suspect that the particular person is armed and dangerous. (Terry v. Ohio (1968) 392 U.S. 1, 24, 27, 30; Thomas v. Dillard (9th Cir. 2016) 818 F.3d 864, 876-879.) Considerations relevant to this inquiry typically include visible bulges or baggy clothing that suggest a hidden weapon; sudden movements or attempts to reach for an object that is not immediately visible; evasive and deceptive responses to an officer's questions about what the individual was doing; and unnatural hand postures that suggest an effort to conceal a weapon. (Thomas, 818 F.3d at p. 877.) The analysis for determining reasonable suspicion supporting a search is separate from determining reasonable suspicion supporting a seizure.

Here, County argues "it is reasonable for an officer to believe that there is a possibility that the suspect armed himself prior to the robbery, or afterwards when he returned to his vehicle. Furthering their concerns, Seward had baggy sweatpants on, which could suggest a hidden weapon. The combination of these

observations with the possibility that this suspect was involved in a violent crime likely gave officers reasonable suspicion that Plaintiff could be armed.” (Mot., p. 10:11-16.) The argument is improper speculation disconnected from any evidentiary showing. There is no evidence establishing that the officers believed at any point that Seward was armed. Rather, the undisputed evidence establishes the dispatch was silent on whether the suspect was armed and that Seward complied with the Deputies directions throughout the encounter. On this evidentiary record, the court cannot conclude as a matter of law that the Deputies had reasonable suspicion to conduct a pat down of Seward. To conclude otherwise would establish a bright line rule that law enforcement may conduct a patsearch in every case involving robbery. However, California law has rejected such a per se rule automatically permitting a pat search for every lawfully detained robbery suspect. (See *In Re Jeremiah S.* (2019) 41 Cal.App.5th 299, 307-308.) County fails to meet its initial burden. Further, because Seward’s sixth cause of action for negligence is based in part on the Deputies’ alleged unlawful search (see Complaint, ¶ 85), the motion fails as to the second and sixth causes of action.

C. Excessive Force

County argues the third cause of action for excessive force fails because the Deputies did not use excessive force when detaining Seward. County describes the force as Deputy Lopez placing Seward’s hands behind his back, holding his wrist and bicep, and escorting Seward to a patrol vehicle. Seward provides a different account. Seward testified that the Deputies pulled and twisted his arms behind his back and squeezed his wrist.[3]

A peace officer may use only the force that is objectively reasonable under the totality of the circumstances, judged from the perspective of a reasonable officer on the scene. (*Graham v. Connor* (1989) 490 U.S. 386, 396-397.) An analysis of an excessive force claim involves three stages. (*Espinosa v. City & Cty. of San Francisco* (9th Cir. 2010) 598 F.3d 528, 537.) First, the court will “assess the severity of the intrusion on the individual’s Fourth Amendment rights by evaluating the type and amount of force inflicted.” (*Id.*) Second, the court evaluates the government’s interests by assessing the severity of the crime; whether the suspect posed an immediate threat to the officers’ or public’s safety; and

whether the suspect was resisting arrest or attempting to escape. (Id.) Last, the court will “balance the gravity of the intrusion on the individual against the government’s need for that intrusion.” (Id.; Graham, supra, at pp. 396-97.) The analysis “must embody allowance for the fact that police officers are often forced to make split-second judgments” and the court does not apply the “20/20 vision of hindsight.” (Graham, at pp. 396-97.) “Officers can have reasonable, but mistaken, beliefs as to the facts establishing the existence of” an immediate threat, and “in those situations courts will not hold that they have violated the Constitution.” (Saucier v. Katz (2001) 533 U.S. 194, 206.)

Here, County offers the Deputies’ body cam footage to establish the absence of excessive force. After reviewing that footage, the court agrees with County’s position. Seward was asked to exit his vehicle. The Deputies escorted Seward away from his vehicle and towards a patrol vehicle. Once there, Deputy Escobar held Seward’s wrist behind his back while Deputy Lopez conducted a patsearch of Seward. This is the sum of the force exerted on Seward. After the search, the Deputies placed Seward in the back of a patrol vehicle without handcuffs.

In opposition, Seward argues there are triable issues as to whether the Deputies’ use of force was commensurate given the circumstances. As outlined above, the dispatch did not report that the suspect was armed, and Seward was compliant throughout the encounter. The court appreciates that a constitutional detention in the absence of any wrongdoing is, to say the least, unpleasant. However, on this record, no reasonable jury could conclude the Deputies’ use of force was excessive. Summary adjudication of the third cause of action is warranted.

D. Municipal Liability

County argues the fourth cause of action for municipal liability under *Monell v. Dep’t of Soc. Servs. of City of New York* (1978) 436 U.S. 658 fails because (i) the Deputies did not violate Seward’s constitutional rights and (ii) Seward “does not identify any violative policy or procedure or a causal relationship between Plaintiff’s detainment and a defect in County’s policies or training” (Mot., p. 22:20-21).

These arguments lack merit.

County's first point fails for the reasons discussed above. Specifically, the court has found there are triable issues of disputed fact regarding Seward's unlawful search claim. County's second point fails on procedural grounds. It is insufficient for the defendant to merely point out the absence of evidence. (Gaggero v. Yura (2003) 108 Cal.App.4th 884, 891.) The defendant "must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim." (Ibid.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (Aguilar, supra, 25 Cal.4th at p. 855.) Here, County fails to make the requisite affirmative showing of the purported defects on Seward's Monell claim. Summary adjudication of the fourth cause of action is not warranted.

E. Violation of Civil Code § 52.1 (Bane Civil Rights Act)

County argues the fifth cause of action for violation of Civil Code section 52.1 fails because the Deputies did not use threats, intimidation, or coercion as required by section 52.1 and Seward's detention was supported by reasonable suspicion. The argument is meritorious.

To prevail on a Bane Civil Rights Act claim, a plaintiff has the burden to prove the following elements: (1) intentional interference or attempted interference with a state or federal constitutional or legal right; (2) the interference or attempted interference was by threats, intimidation, or coercion; and (3) the defendant acted with a specific intent to violate the plaintiff's civil rights. (Allen v. City of Sacramento (2015) 234 Cal.App.4th 41, 67; Cornell v. City & Cnty. of San Francisco (2017) 17 Cal.App.5th 766, 801.) The "threat, intimidation or coercion" element need not be transactionally independent of the constitutional violation, and no hate-crime or protected-class motive is required. (Cornell, at pp. 799-800.)

Here, given the court's ruling on the unlawful detention claim, Seward cannot prove any of the elements of a Bane Act violation. The totality of the circumstances gave rise to reasonable suspicion sufficient to detain Seward. As such, there is no predicate constitutional violation to support Seward's Bane Act claim. Summary adjudication of the fifth cause of action is warranted.

F. Intentional

Infliction of Emotional Distress

County argues

the eighth cause of action for intentional infliction of emotional distress (IIED) fails because Seward's detainment was lawful and because Deputies' conduct was not extreme and outrageous. The argument is meritorious. The court has concluded summary adjudication of the unlawful detention claim is warranted because reasonable suspicion supported Seward's detainment. The IIED claim is also based on excessive force. (See Complaint, ¶ 98.) Because the court has also concluded the excessive force claim fails, the IIED claim falls apart. Summary adjudication of the eighth cause of action is warranted.

V. CONCLUSION

Based on

the foregoing, the motion for summary adjudication of the first, third, fifth, seventh and eighth causes of action is GRANTED.

The motion for summary adjudication of the second, fourth, and sixth causes of action is DENIED.

Moving party to give notice.

Dated: August 14,
2026

Brock T. Hammond

Judge of the
Superior Court

[1] The opposition is untimely. Plaintiff filed the opposition less than twenty days before the hearing. (See Code Civ. Proc., § 437c, subd. (b)(2).) The court exercises its discretion to consider the arguments raised therein. (Cal. R. Ct., rule 3.1300(d).)

[2] County also argues the second

cause of action for unreasonable search and seizure, third cause of action for excessive force, and sixth cause of action for negligence fails for the same reason. However, the analysis is different (at least in part) for those causes of action. For this reason, the court discusses separately the second, third, and sixth causes of action.

[3] Seward

testified he was violently and abruptly pulled him from his vehicle but the Deputies' body camera footage does not support his testimony.